

2024-02-07 Transcript of Hearing

Extortion of money and documents of my son Max Mars
by Stephen Lowney under threats of unlawful incarceration

Child Trafficker Stephen Lowney, bribed Family Court Judge,
Member of Santa Clara Mafia Cartel (BBMP):
Child Trafficking, Kidnapping, Extortion,
Racketeering Under Color Of Law

Audio recording online:

https://drive.google.com/file/d/1YKpbX-Hw9vpJO1YvnelR_NEMyAzAzCF/view?usp=drive_link



QR code for quick access:

[00:00:00]

[Participants:] Good afternoon. Good afternoon.

[Stephen Lowney, Judge:] Appearances please.

[Royce Mars:] Royce Mars, petitioner.

[Nancy Roberts, Opposing Lawyer:] Nancy Roberts for respondent, Hanna Mars, who's present. She's going to be assisted by the Ukrainian interpreter.

>> [Comment:] Nancy Roberts moves and talks like she is on drugs. Probably on cocaine as usually

[Maria Rekretiyuk:] Interpreter, Maria Rekretiyuk, REKRETYUK, registered Ukrainian language interpreter, bench number 700739, open file.

[00:00:39]

[Stephen Lowney, Judge:] Alright, So we are here on several

matters. We did pass a matter that was on this morning's calendar, line number three, and we pass it to this afternoon,

[00:01:00]

[Stephen Lowney, Judge:] And that's the one I want to take up first, that is Mr. Mars' request for a motion to disqualify opposing counsel.

Before we get started, are there any issues that need to be discussed?

[00:01:07]

[Royce Mars:] Your Honor, from my side, my printer was out of paper. I was not able to make copies for this matter. I did courtesy copies of evidence for the restraining order, and unfortunately we didn't have a chance to prepare copies for disqualification of opposing counsel, so it was something I would like to bring to the attention of the Court.

[Stephen Lowney, Judge:] So were you served with this motion?

[00:01:36]

[Nancy Roberts, Opposing Lawyer:] I received his response, your honor.

[00:01:42]

[Stephen Lowney, Judge:] This is on the motion to disqualify.

[Nancy Roberts, Opposing Lawyer:] Oh, the motion to disqualify?

[Stephen Lowney, Judge:] Yeah, that's what we're, that's all we're doing right now.

[Nancy Roberts, Opposing Lawyer:] Yes, I received, but I am objecting. Mr. Mars has served amended, uh, pleadings for most of these motions, and I was served like five days before this hearing, so I have responded to the original motion, um, and his, uh, amended motions are not timely.

[00:02:07]

[Stephen Lowney, Judge:] So I understand that you're objecting. Yes. And I understand, uh, the merits of the objection. Would you nevertheless like to proceed today and get an answer on this?

[Nancy Roberts, Opposing Lawyer:] Yes, Your Honor, but if there's any new claims that were brought up. Absolutely. Thank you.

[Stephen Lowney, Judge:] Absolutely.

[Nancy Roberts, Opposing Lawyer:] I also have one issue that needs to be addressed.

It is impossible to personally serve Mr. Mars. Um, he has given a PO box to the court and to my office. Um, as you know, you can obtain the residential address for a PO box. When that was done, the P. O. box, address given was another P. O. box, and then when I followed up on that P. O. box, um, he had, uh, closed that box and moved.

Okay. Um, I had a process server go out, he has not been at that address for the last nine months. I understand the post office is looking into it, but I have no way, at this point in time, other than in court, to serve Mr. Mars. Okay.

[Stephen Lowney, Judge:] And is this about which thing you are trying to pursue?

[Nancy Roberts, Opposing Lawyer:] I had to continue the contempt hearing.

Okay. I get a new date because serving him today would mean it outside the 16 court dates.

[Stephen Lowney, Judge:] Okay, and I believe that continuance is granted.

[Nancy Roberts, Opposing Lawyer:] Yes, it was.

[Stephen Lowney, Judge:] Okay. And it's rescheduled.

[Nancy Roberts, Opposing Lawyer:] The problem is that this issue comes up in the future. There's still no address at which he can be served, personally.

[00:03:37]

[Stephen Lowney, Judge:] Alright, and Mr. Mars, um, service is important in this case. Um, we need to have an address for you to be personally served if we're going to move forward on certain things.

[Royce Mars:] Your Honor, taking into account the massive fraud scheme that opposing counsel...

[Stephen Lowney, Judge:] I didn't get that

[00:04:00]

[Royce Mars:] Taking into account the massive fraud scheme that opposing counsel created against me, unfortunately, I feel unsafe to share my address.

[00:04:07]

And, uh, I'm available for personal service on the phone call. I can come to, um, Mr. Roberts office and just be served.

So I'm open for service, and we have contact with Ms. Roberts all the time.

[Stephen Lowney, Judge:] Okay, so just so you know, um, if you are not going to make yourself available for personal service, and the court, under the code, finds that you are evading, and essentially, if you are not going to make yourself available for personal service, um, the court can find you're evading, and can order alternative means of service, which would require you to accept, for example, Electronic service.

[00:04:48]

[Royce Mars:] Thank you, your Honor. I would kind of ask you to allow electronic service

[Stephen Lowney, Judge:] Allow?

[Royce Mars:] Yes.

[Stephen Lowney, Judge:] In personal service, in lieu of personal service. Um, when it is required, [00:05:00] uh, electronic service, um, is going to be deemed appropriate. Uh, and same for any service going forward.

[Royce Mars:] Thank you, your Honor.

[Stephen Lowney, Judge:] Okay.

[Nancy Roberts, Opposing Lawyer:] Okay. Thank you Sir.

[00:05:12]

[Stephen Lowney, Judge:] Again, let's move to the first, the motion to disqualify opposing counsel, and that,

Yes, I'm sorry, we're going to, that's where I'm going to start. Can you repeat your comment?

[Clerk True Parker swearing parties:] Do you both promise to stay under penalty of perjury that my testimony should be the truth, and only the truth?

[00:06:00]

[Stephen Lowney, Judge:] Mr. Mars, It looks like this same motion, and this was on June 22nd, 2023, and the same motion was denied on August 1st, 2023. Just so you know, the legal standard for bringing this motion again is that you need to provide newer different facts or circumstances or law that warrants the court to reconsider this motion.

So between the time of the denial, uh, 8 1, 23, and the time that you filed this, um, what new law, facts, or circumstances?

[00:06:35]

And keep in mind that I looked at your prior motion in preparation for today.

So what new law, facts, or circumstances?

[Royce Mars:] May I use my laptop to look up documents?

[Stephen Lowney, Judge:] You may.

[00:07:33]

[Royce Mars:] The first fact that changed since August is the disqualification of Judge Flint.

[Stephen Lowney, Judge:] Go ahead.

[Royce Mars:] So first is the disqualification of Judge Flint.

[00:08:00]

And I do know that the court brought, um, this in a different light.

[Stephen Lowney, Judge:] Um, thanks.

[Royce Mars:] So first fact is the verified written statement of disqualification against Judge Flint that was addressed to Presiding Judge Beth McGowen.

[00:08:14]

[Stephen Lowney, Judge:] Thank you. So, we're going to go one at a time.

[Stephen Lowney, Judge:] So, the fact that a judge has changed, since the actual ruling on this, is not a legally sufficient change of circumstance.

Because that's not a changed circumstance that would not justify reconsideration.

[Royce Mars:] Your Honor, I'm bringing it because there was a suspect that opposing counsel Nancy Roberts was in a criminal conspiracy with the judge Flint.

And that's why I'm bringing it to the attention of the court.

[Stephen Lowney, Judge:] So, I understand you want to bring lots of different things to the attention of the

court.

But I'm going to focus here. Okay?

So, another? That is not, not a changed circumstance. So, you need to give me a changed circumstance before I'm going to reconsider.

[00:09:17]

[Royce Mars:] Another change of circumstances is professionally supervised reports which contain the fact that the respondent did abduct, in another words, parentally kidnap my child to an undisclosed location and pull out a SIM card from my son's phone.

[Stephen Lowney, Judge:] Okay. So, what is the date of that?

[Royce Mars:] Let me check evidence

[00:09:53]

[Nancy Roberts, Opposing Lawyer:] Your Honor, I didn't get what was that?

[Stephen Lowney, Judge:] It was an allegation that a SIM card was pulled out. That kidnapping or abduction occurred.

[00:10:08]

[Royce Mars:] So, I just need to pull up, visitation report. This was November 10, 2023.

[Stephen Lowney, Judge:] What is the allegation?

[Royce Mars:] The Respondent kidnapped my son, which I do classify as parental child abduction.

[Stephen Lowney, Judge:] When?

[Royce Mars:] So the respondent moved my son in April.

[Stephen Lowney, Judge:] Of what year?

[Royce Mars:] 2023.

[Stephen Lowney, Judge:] Okay.

[00:11:00]

[Royce Mars:] To an unknown location and refused to share address where my son is detained.

[Stephen Lowney, Judge:] Okay, so let me stop you here, to me because I looked at your prior motion and you are just saying the same to me.

[00:11:07]

[Royce Mars:] But I'm talking about a report, which confirms that the respondent pulled out a SIM card from Max's phone keeping my son without means of contact, and this report was made on November 10th. So it's a new fact which confirms,

[Stephen Lowney, Judge:] But this is a disqualification motion, so it would have to be a new fact. That justifies disqualification. This is not disqualification of the respondent. It's not a disqualification of the respondent.

[Royce Mars:] Yes, your honor. But among evidence that I provided for disqualification of opposing counsel, there are messages where respondent confirms that her attorney suggests to block all contact with the child and force me to surrender custody, which they call "sign a new agreement".

[00:12:01]

[Stephen Lowney, Judge:] So beyond the allegations of kidnapping and abduction do you have any other basis for disqualification?

[00:12:13]

[Royce Mars:] Your Honor, so another basis, um, that might be old, but I would like to bring it to attention to the court, that Judge Flint, unlawfully removed signed and emergency screener recommendations that were filed with the court.

[Stephen Lowney, Judge:] So, this is an allegation against Judge Flint?

[Royce Mars:] No.

[Stephen Lowney, Judge:] This motion is for disqualification of opposing counsel.

[00:12:36]

[Royce Mars:] Um, Your Honor, this is an allegation against an opposing counsel - because opposing counsel lied to Judge Flint during the hearing on June 29th. And Judge Flint, trusted opposing counsel that signed emergency screener recommendations were falsified, allegedly, but that message was sent to the court.

And that message was forwarded to you, your Honor..

[Interrupted by Stephen Lowney]

[Stephen Lowney, Judge:] So all of these allegations were produced in May. In your June disqualification.

[Royce Mars:] I did bring a screenshot of the email thread of conversation of the opposing attorney with the court.

[Stephen Lowney, Judge:] It has to be something new. It can't be cumulative evidence of your allegations that you've already made.

[00:13:26]

[Royce Mars:] Let me check it again.

[Stephen Lowney, Judge:] Ok, just one more time and I'm about to get the response

[00:14:14]

[Royce Mars:] Your Honor, it also was brought to the attention of the Court... I mean, it's not as important as child abduction made on advise of attorney, and it is not as important as lying to judge in the courtroom during hearing, which led to dismissal of signed emergency screener recommendations, but it was brought to the court that on December 12th, Ms. Roberts was attempting evasion of service.

And, unfortunately, the same day she harassed process servers, which was documented in email and evidence.

[Stephen Lowney, Judge:] Okay. Alright, Ms. Roberts, do you have any comments?

[Nancy Roberts, Opposing Lawyer:] Just on this one. Yes, um, this is actually the same as the first motion, which was denied. There are no legal grounds for disqualification, or disqualification of counsel.

There is no conflict of interest. Um, and my client is requesting that the court deny Mr. Mars' motion and that he be sanctioned for bringing this motion.

[Royce Mars:] Objection.

[Stephen Lowney, Judge:] Go on.

[Royce Mars:] Regarding permissible conflict of interest, I do believe that, the definition of impermissible conflict of interest is included in Motion to Disqualify Opposing Attorney, and contains legal grounds, which you most probably saw, have to take into attention, and I will not repeat them.

[Royce Mars:] Impermissible conflict of interest obviously exists, because of repetitive pressure on professional supervisors and pressure on emergency screener, both are documented in evidence.

[Royce Mars:] Unfortunately, this confirms that Nancy Roberts went much further than just a legal argument during court hearings.

[00:16:00]

[Nancy Roberts, Opposing Lawyer:] I would object to assuming facts are not evidence.

[00:16:02]

[Stephen Lowney, Judge:] So, it does assume facts are not evidence. However, even if those facts were true, and the court is not saying at all that they are true,

That is not a conflict of interest. That is a disagreement about how to defend a client. So, the court is not going to reconsider your motion because I don't find any legally sufficient facts, any clear circumstances or law warranting reconsideration for your motion to qualify. And let me say, if I did believe that this was new information, I have examined the information and heard from both parties, and even if I was going to consider it, I would deny it as insufficient.

[00:17:00]

[Stephen Lowney, Judge:] So let's move on to number two. And number two is, Mr. Mars, your request to modify child custody and child visitation and appoint minor's counsel to Max, is that correct?

[Royce Mars:] Initially it was request to grant child abduction prevention orders and to review emergency screener recommendations which were removed without consideration.

[00:17:49]

[Stephen Lowney, Judge:] When was the time you filed it?

[00:19:14]

[Royce Mars:] The version was filed on January 17th, but I think the initial version was filed in August.

[00:19:27]

Yes, it is an amended version, but form 300 wasn't modified.

[00:20:00]

[Stephen Lowney, Judge:] So, I got the amended request for order, and it says that you're asking for child abduction prevention orders, and they're asking for totally new custody, joint legal, physical custody, and a brief end to the child abduction order, and amended scheduled exchanges on Wednesdays after school.

Um, again, it's going to be the same question. What are the changes and advances from the prior orders of 10/31/22?

Does everyone agree that the prior orders are from 10/31/22? Ms. Roberts?

[00:21:00]

[Nancy Roberts, Opposing Lawyer:] There are two sets of orders, Your Honor. One set of orders is 10/2022. There are also orders that are not in conflict that were filed on January 26, 2023. That's not the timeshare, but they are additional continuity orders.

[00:21:00]

[Stephen Lowney, Judge:] Okay. This includes orders on what changed in circumstances. Do you have to justify a modification?

[Royce Mars:] I do believe that, um, this matter could be heard only after Trial on Opposing DVROs.

Because, on November 28th, I filed a DVRO against the Respondent to protect my son from domestic violence and international child abduction.

So I'm kindly asking you to hear this matter after opposing DVROs, because there's dependency on extensive critical evidence.

[Stephen Lowney, Judge:] So right now you're withdrawing your request for modification?

[Royce Mars:] I do not withdraw the request, but I do believe that it depends on what the court

[Stephen Lowney, Judge:] You want the court to reserve judgment on the issue?

[00:21:44]

[Royce Mars:] I do, until after the DVRO Trial. Thank you your Honor.

[Stephen Lowney, Judge:] Mr. Roberts?

[00:21:52]

[Nancy Roberts, Opposing Lawyer:] I would agree with him on the issue of the restraining order. Also, that Mr. Mars has been in contempt for some of these orders.

[00:22:07]

[Royce Mars:] Objection.

[Stephen Lowney, Judge:] No, sir.

[Royce Mars:] I'm not in contempt.

[Stephen Lowney, Judge:] Okay, that's overruled.

[00:22:27]

Um, so, I just want to make sure I am keeping track of your requests.

[00:22:34]

So, line 2, we are going to reserve on,

I'm sorry, line 1 on this calendar, we are going to reserve any modification of child custody and child visitations.

[00:22:56]

And any request contained in that order.

[00:23:05]

The next one on our calendar

[00:23:17]

Also looks like a set aside order from June 29, 2023. We need to file this request for order so we make sure we're not going to have to correct it. When did you file this request for order? Set aside.

[00:23:46]

[Royce Mars:] Let me check.

[Royce Mars:] Meanwhile, I do remember there was a media request for coverage on this hearing.

[Stephen Lowney, Judge:] It was denied.

[Royce Mars:] Thank you.

[Stephen Lowney, Judge:] It was denied formally.

You should have received notice.

[Royce Mars:] I didn't receive it.

[00:24:00]

[Stephen Lowney, Judge:] It says it comes from our media coordinator and it doesn't come from me.

[Royce Mars:] Thank you.

[Stephen Lowney, Judge:] The service list. I believe that's tomorrow's motion.

[00:24:09]

[Nancy Roberts, Opposing Lawyer:] It's followed by March 30th.

[Stephen Lowney, Judge:] Thank you.

[00:26:27]

[Royce Mars:] June 29th. It was filed on, um,
August 30. [00:27:02]

[Stephen Lowney, Judge:] Did anyone expect any witnesses? I am not sure who.

[Stephen Lowney, Judge:] You have to know the names of your witnesses.
So, my question is, there's somebody called Ren Bird.

[00:27:24]

[Stephen Lowney, Judge:] Time to get in on the scene. Is that a friend or a witness of yours?

[Royce Mars:] I think so.

[Stephen Lowney, Judge:] You think so?

[Royce Mars:] Yes.

[Stephen Lowney, Judge:] Okay, so you have to tell the names of your witnesses.
You have to know who they are and what they're going to say. Do you know who this person is?

[Royce Mars:] No, I'm not sure.

[Stephen Lowney, Judge:] Okay, so they won't be able to join.

>> **[Comment:]** Denial of public access to hearing, denial of access to court

[00:27:52]

[Royce Mars:] Okay.

[00:28:03]

[Stephen Lowney, Judge:] Okay.

[00:28:22]

[Stephen Lowney, Judge:] Ok, Mr. Mars, what exactly are you looking for in this, in this request?

[Royce Mars:] I didn't prepare for this matter today. I didn't take evidence, uh, but briefly I do remember that orders on June 29 were made extremely favorable for respondent by Judge Flint who was suspected in receiving bribe from Respondent, and made without consideration of any evidence

[00:29:04]

[Stephen Lowney, Judge:] So, so your allegations of bribery and fraud are not proven. They assume facts, not evidence. And the court is not going to consider them. And I do not want to hear that.

>> [Comment:] Bribed child trafficker Stephen Lowney doesn't like truth about bribery - why?

[00:29:27]

[Royce Mars:] May I?

[Stephen Lowney, Judge:] Alright. So let's talk about this 6/29 order. Tell me the reasons, the legal reasons you believe the court should reconsider and set it up.

[Royce Mars:] Your Honor, I have kindly, asked the court to reconsider this order and review evidence related to parental child abduction because initial request for hearing on June 29th was related to the fact The respondent, without notice, without prior notice, moved my child to an unknown location, refused to share address.

[Lowney and Nancy Roberts both interrupted me]

[00:30:09]

[Stephen Lowney, Judge:] Okay, so, Mr. Mars, it must not be lost on you that you're using the same allegations to ask the court to set aside all of these orders, the same exact allegations.

[Royce Mars:] I apologize, but I think that for this specific order it was very relevant, because that hearing was brought to the attention of the court.

[Interrupted by Lowney again]

[00:30:35]

[Stephen Lowney, Judge:] Right, so my problem is, at that hearing, you brought up all of these things. And your request was denied.

[Royce Mars:] My request was denied by disqualified bribed Judge Flint...

[Interrupted by Lowney again]

[Stephen Lowney, Judge:] Right.

[00:31:00]

[Royce Mars:] I will not repeat my words because you said I shouldn't, right? But evidence was never reviewed, and an emergency screener was not subpoenaed in the best interest of the child, on the safety of the child.

[00:31:07]

[Stephen Lowney, Judge:] But those are not, those are complaints about how the hearing went, and how you wanted it to go, and what you wanted to be considered at the time of the hearing. Those aren't new facts and circumstances that would justify reconsideration and a set aside of that order.

[Royce Mars:] Your Honor, I understand your position.

And I trust you as a judge, but I just bring to your attention the fact that that order was intentionally wrongful and my son deserves to have father.

[Stephen Lowney, Judge:] Okay, so I understand, I understand you disagree, but in those circumstances, where there are not changes filed or changes in law, the law provides a remedy. And that remedy is an appeal, a timely filed appeal.

[00:31:57]

And an appeal is saying exactly what you are saying to the court. You believe it was wrongly decided. You would like it to be heard again. But, that is not the basis of a motion for reconsider. Okay?

>> **[Comment:]** Lowney is lying : motion to reconsider has purpose of reconsideration of orders

So, that request to set aside the 6th Amendment is denied. And it is denied because there are no new circumstances, facts, or law that would justify a reconsideration.

And having heard the proper reasons for reconsideration, even if there were new circumstances, law, or facts, the court would deem them legally insufficient to set aside the order.

>> **[Comment:]** Lowney denies reconsideration and custody review hearing

[Nancy Roberts, Opposing Lawyer:] I'm sorry, Your Honor. There's been so many motions filed in this case. Was that still regarding custody and child custody?

[00:33:01]

[Stephen Lowney, Judge:] That was regarding the motion to set aside the 6/29.

So it would be number three on today's calendar.

Now we'll go to number four on this afternoon's calendar.

This is a request to set aside an order filed on July 31st, 2023.

And that is your request, Mr. Mars.

[Royce Mars:] Yes.

[Stephen Lowney, Judge:] And what is the change of circumstances? The law or facts that were judged by the consideration.

[Royce Mars:] Your Honor, as you mentioned, I cannot say why Judge Flint made that wrongful order (bribery), so I would just say that Judge Flint made an order without consideration of balance statements and, and sale agreement for Volkswagen Tiguan that is in possession of Respondent.

I do believe there were some other wrongful orders, but this one is outstanding because we cannot transfer title to Respondent. And my request was to resolve the matter of transferring title because, as you're aware, I'm on the brink of bankruptcy.

I do not have \$6,000 dollars to buy out a car. And I kindly offered the Respondent's attorney to settle an agreement.

[Stephen Lowney, Judge:] And so, I imagine, all of those facts were brought to the court's attention at that time?

[Royce Mars:] Unfortunately, (bribed) Judge Flint refused to review evidence and refused to see a car sale agreement.

[Stephen Lowney, Judge:] Did you make those, did you make those arguments at that time?

[00:35:54]

[Royce Mars:] I think so.

[Stephen Lowney, Judge:] Right. Okay.

[Royce Mars:] But...

[Interrupted by Lowney]

[Stephen Lowney, Judge:] Hold on, hold on.

[Nancy Roberts, Opposing Lawyer:] Objection

[00:36:00]

[Stephen Lowney, Judge:] Okay, which one?

[Nancy Roberts, Opposing Lawyer:] ...that the judge did not consider his evidence.

[Stephen Lowney, Judge:] So again, you disagree with the order. I understand that. We just talked about an appeal, and when an appeal is appropriate, um, it sounds like you made these arguments in front of Judge Flint. I don't know why you would not have.

It was listened to. You don't think it was considered, but it was at least listened to.

[Stephen Lowney, Judge:] It was presented and afterwards denied.

Or there was an order made that you disagreed with. Correct?

[Royce Mars:] Your Honor, as far as I remember, on July 31st, I did request for continuance due to medical emergency, and because Judge Flint had prejudice against me, she denied, and at all the hearing, I've been seated with a very severe head and tooth pain, and it was very hard to concentrate at the moment.

[00:37:02]

[Stephen Lowney, Judge:] Okay. So, again, the court was made aware of all of those things? And that is not new to the court, and so there is no basis for reconsideration. So that request is also going to be denied.

[Royce Mars:] Your Honor, may I ask you at least to reserve this matter until a final trial? Because we need to transfer the car title to the respondent. And unfortunately we are blocked because the car is registered to me.

[Stephen Lowney, Judge:] So I'm not going to reserve an issue that has already been decided in an order already made.

[Royce Mars:] Your Honor, how can we resolve it? I cannot say how the court at this moment is refusing to come to an agreement about payment.

[Stephen Lowney, Judge:] Um, in normal circumstances, there would be a meet, confer, and mediation on these things, and a settlement officer conference. But, it's not to ask the court to set aside a lawful order.

[Royce Mars:] Thank you, Your Honor. Do I understand correctly that we can bring this matter to a family status conference?

[Stephen Lowney, Judge:] So, we're not ready to do that.

>> **[Comment:]** Lowney is denying status conference for final trial - blocking case from resolution.

>> **[Comment:]** RICO Predicate Act: Denial of access to court, obstruction of justice

I'm just saying that there are ways to resolve these issues. But, um, you would have to agree on a way to resolve these issues.

[00:38:20]

[Stephen Lowney, Judge:] And you're not quite there yet.

>> **[Comment:]** Lowney is denying status conference - blocking case from resolution.

>> **[Comment:]** RICO Predicate Act: Obstruction of justice, denial of access to court

But the way, it certainly isn't a way to ask the person to set aside.

[Royce Mars:] It sounds familiar.

[Stephen Lowney, Judge:] And let's go on. So Lines 5 and 6 are the mutual requests for domestic violence restraining orders.

The normal course would be to, is everybody ready for trial?

[Nancy Roberts, Opposing Lawyer:] Before we get to that issue, can we get another resolution?

[Stephen Lowney, Judge:] I was going to do that. Oh, okay, fine, Um, we still have, so, normal course of business on these types of cases. We will accept them. Other issues are waiting to be resolved.

Are both sides ready for trial?

[Nancy Roberts, Opposing Lawyer:] Yes, sir.

[Royce Mars:] Yes, Your Honor.

[Stephen Lowney, Judge:] And time of trial? Is that your case?

[Royce Mars:] I would try to do it in two hours. If you would allow me to present the evidence.

[Stephen Lowney, Judge:] You're going to do it in two hours for news, your witnesses, and any evidence that you want to do?

[Royce Mars:] Yes, Your Honor.

[Stephen Lowney, Judge:] So let's set it for half a day. Just so you're aware, it's going to be some time.
We have a heavily impacted trial calendar

>> [Comment:] Lowney is lying: He is intentionally denying DVRO Trial for the next 6 months. His calendar is free and he accepted multiple hearings during the next 6 months.

>> [Comment:] RICO Predicate Act: Obstruction of justice, denial of access to court.

[00:41:46] When is the party anticipated being ready for a final trial on all the outstanding things?

[Nancy Roberts, Opposing Lawyer:] I'm not sure we can address that anytime soon. A final trial and termination of status, but there is no QDRO in place because Mr. Mars is not cooperating with the court order and he's not signing the QDRO.

>> [Comment:] Lowney and Roberts are intentionally blocking the case from resolution to continue unlawful wages garnishment. Nancy Roberts is lying - I sent her copy of QDRO for signature, but she refused, insisting on falsifying QDRO with her criminal associated Barbara Strasen, member of Santa Clara Mafia Cartel, who withdrew after I notified her that Flint was disqualified and is under FBI investigation

[00:42:10]

[Stephen Lowney, Judge:] We'll get to that, we'll get to that next. So we're not, we're not anywhere near.

[Nancy Roberts, Opposing Lawyer:] No, not until we have a QDRO.

[Royce Mars:] Objection. We do have a QDRO.

[Stephen Lowney, Judge:] I got it. And I have to apologize. I'm getting more information than I can.

The first full half day I have is June 17th at 9:00 AM.

>> [Comment:] Lowney is lying - calendar is not as busy. He is denying DVRO Trial and holding my son Max Mars hostage without right for a phone call, extorting money and my 401k funds, coercing me to accept Santa Clara Mafia Cartel QDRO fraud using my son detention as leverage for extortion

>> [Comment:] RICO Predicate: Obstruction of justice, denial of access to court, racketeering

The trial on the DVRO.

[00:42:54] All parties will have to be personally present,

exchange witnesses and exhibits five days before. I'm authorizing, as I said before, electronic service for both sides.

[00:43:10] I'm going to be reading through these trial exhibits. Not by email, but by eFiling.

[Royce Mars:] Your Honor, how much is this different from filing in person?

[Stephen Lowney, Judge:] You file, so you know how to electronically file things, correct?

[Royce Mars:] Possibly.

[Stephen Lowney, Judge:] These are going to be electronically filed. And I should say, please read our email policy. You're emailing too many things to the court.

>> **[Comment:]** Lowney is prohibiting sending copies of evidence in email, because email evidence is universal evidence of delivery to court, confirming that judge and clerk were notified about importance of this evidence - how it was with supervised reports and evidence of bruises on body of my son

[00:43:43]

[Royce Mars:] Ok, apologies for that. These will not be emailed to the court.

[00:43:58]

[Stephen Lowney, Judge:] And as an added incentive regarding our email policy, if it's violated, I didn't receive them. Okay?

>> **[Comment:]** Lowney is insisting on absence of evidence of direct delivery of evidence before trial. All those "I didn't receive them" is just bullshit to divert from the fact of delivery of filed stamped evidence to his direct attention (which was made right before today's hearing - and which he refuses).

[00:44:09]

[Royce Mars:] Your Honor, may you please consider the date for a final trial? Because we will not need the settlement conference.

[Stephen Lowney, Judge:] You don't need it or don't want it?

[Royce Mars:] I sent a marital settlement agreement this morning. It is a sixth amended version. And unfortunately, Ms Roberts answered this morning that she doesn't want to cooperate.

[Royce Mars:] So I would kindly ask for a trial date to finalize divorce matter.

[Royce Mars:] And I kindly ask the court to grant me permission to file QDRO for the signature of the court. Because it's ready.

[Stephen Lowney, Judge:] To file what?

[Royce Mars:] QDRO to divide my 401(k).

[Stephen Lowney, Judge:] That's not on today.

[00:45:00]

[Royce Mars:] Is it possible to get a date for the final trial?

[Stephen Lowney, Judge:] It doesn't sound like the parties are ready.

>> [Comment:] Lowney just denied finalizing divorce - despite MSA and QDRO filed with the court and shared with opposing attorney.

>> [Comment:] RICO Predicate Act: Obstruction of justice, denial of access to court, denial of fair trial, coercion, extortion, racketeering

[00:45:00] So, you have to vote when you are ready. And you're not going to get away with not having a settlement

conference, or a mandatory settlement, or a settlement officer conference, or a mandatory settlement conference. Those are going to happen no matter what.

Um, and the DVRO also has to be set, has to be done before the final trial, because we can't do permanent orders on file and other things.

[00:45:33]

[Royce Mars:] Is it possible to hear DVROs Trial today?

[Stephen Lowney, Judge:] No

>> [Comment:] RICO Predicate Act: Denial of access to court, Obstruction of justice, denial of fair trial, coercion, extortion, racketeering

>> [Comment:] Lowney denied DVRO Trial, coercing me to accept QDRO fraud and accept demands of kidnappers, detaining my son Max Mars hostage without right for a phone call for the next 6 months (half year of unlawful detention)

[Stephen Lowney, Judge:] And the request for a Final Trial date is denied.

>> [Comment:] Lowney removed from calendar Final Trial and denied Final Trial

>> [Comment:] RICO Predicate Act: Denial of access to court, Obstruction of justice, denial of fair trial, coercion, extortion, racketeering

And I should also add, um, we can't just bring up new things when we're in court. So everybody have a notice, that's why we have notice and opportunity to be heard. Um, you can imagine if you saw the product of a brand new subject, um, you would want time, notice, and opportunity.

[00:46:16]

[Nancy Roberts, Opposing Lawyer:] [Indistinguishable]

[Royce Mars:] Objection. Your Honor, I think we need a status conference. This potentially may settle things.

[Stephen Lowney, Judge:] You can settle things on your own. It's got to. The settlement is not going to occur at the status conference.

[Royce Mars:] So you're saying the status conference is not going to happen before trial?

[Stephen Lowney, Judge:] No, mandatory settlement conference.

[00:46:39]

[Royce Mars:] Can we get a settlement conference please?

[Stephen Lowney, Judge:] No, we need a trial date first. We're not, we're just not there yet. We're not there yet. We just set a domestic violence restraining order trial, uh, in June. Um, so that needs to be settled. Um, you are free to settle any matters that you want without court intervention, but those do not happen.

>> [Comment:] Lowney is denying trial, denying access to court, coercing to surrender custody rights and accept QDRO fraud by Strassen

[00:47:02]

[Royce Mars:] Your Honor, I just kindly ask you to consider the possibility of hearing the DVRO before June, because it will already be two years of unreasonably extended unlawful detention and parental alienation.

[Stephen Lowney, Judge:] These were, these were both just recently filed, so I'm, the court is not sympathetic. And these are subsequent, second DVROs, so the court is really not sympathetic about these, about filing part of them.

[Stephen Lowney, Judge:] We are going to vacate the March 5th status. We are not going to set a trial.

>> **[Comment:]** Fucked child trafficker Lowney is denying both DVRO Trial and Final Trial - blocking case from resolution and coercing me to give up money and my 401k to kidnappers who hold my son Max Mars hostage, using Max's detention as leverage for extortion of money

We have our next stage. on the DVRO. And I'm sure we have more data to come out.

We are going to move on.

[00:48:17] So, this may be the same request, but this is another modification that set aside the orders from July 31st 2023. That looks like a repeat request. Um, yes, I think you already heard this metric today. Right, but I'm just saying if I'm correct. Um, maybe very promising. I'm not sure. I want to make sure that we address this.

[00:48:47] And now we're going to go to respondents request for orders.

[00:49:00] I have a note on this. Can you remind me? Your filing date?

[Nancy Roberts, Opposing Lawyer:] Filing date was September 26th, 2023. September 26th, 2023.

[00:50:00]

[Stephen Lowney, Judge:] January 11th, 2023. And that would continue
Okay, so at your request for order, I will let you present it in the order that you would like.

[Nancy Roberts, Opposing Lawyer:] Yes, Your Honor. The first request was to have Mr. Mars declare vexatious litigant.

>> **[Comment:]** Nancy Roberts requesting Vex Lit to deny me access to court because I requested custody review with each of 3 disqualified bribed judges Lowney, Flint, Towery

[Nancy Roberts, Opposing Lawyer:] Um, in the six months after his former counsel withdrew, there were 14 motions filed and appealed. Um, the divorce case filed in Ukraine, um, These consisted of pre judicial refusals,

[Nancy Roberts, Opposing Lawyer:] One request for a final trial, was then continued out several custody review requests, a contempt motion, a motion to disqualify me as respondent's counsel, two motions to terminate wage withholding orders, a motion to reconsider a court order, and a motion to change venue.

[Nancy Roberts, Opposing Lawyer:] Since the filing of the motion on September 22nd, in the last four months, there's been six amended final trial dates, six amended exhibits for custody trial, additional motions, five to six additional motions to custody review, motions to recuse judge Flint, [UNDISTINGUISHABLE], an additional motion to disqualify me, an additional contempt motion, additional motions to incriminate the ways that the building ordinance is in order, three motions to modify support and custody.

[Nancy Roberts, Opposing Lawyer:] Two motions for reconsideration and a motion to bifurcate and terminate marital status. I have no more room in my office for all these motions. If each motion are the same 250 pages of exhibits attached, it is difficult to even keep straight which pleading is Mr. Mars is requesting.

>> [Comment:] Nancy Roberts confirms that I drive the process and request to release my son Max Mars from unlawful detention, request custody review, request finalization of divorce case, request to stop wages garnishment, requested disqualification of child traffickers Flint and Roberts - which is absolutely reasonable to stop fraud on court, get fair impartial trial and finalize the case

[00:52:01] There are amendments to everything. Um, most of these motions have been denied. I'm asking this court to list Mr. Mars as a vexatious litigant to prohibit his filing without the leave of the presiding judge in order to put an end to this. I'm very concerned that even once this case is resolved, with the filing of support and custody motions, two and three every month.

But this is never ending.

[Stephen Lowney, Judge:] So now it's your turn to respond.

[00:53:00]

[Royce Mars:] Ok. First and foremost, I kindly bring to your attention that there were nine motions to this court to recuse Judge Flint. And as you mentioned, I will not raise again the reasons why (Flint bribed by Respondent), but there was strong belief that there was a criminal conspiracy between Nancy Roberts and Judge Andrea Flint.

[Royce Mars:] Therefore, those motions were very reasonable. And the reason was to move on with the case. Because unfortunately, Ms. Roberts, together with Judge Flint, were sabotaging finalization of this case. So Ms. Roberts did know that.

[Stephen Lowney, Judge:] So Mr. Mars, you brought a motion to disqualify Judge Flint - and what was the result?

[Royce Mars:] The first time it was denied by Judge Flint without consideration.

And then I brought it again.

[Royce Mars:] I brought verified written statement to attention of Presenting Judge Beth McGowen.

[Stephen Lowney, Judge:] And what was the result?

[Royce Mars:] I'm waiting for a response. As far as I know, uh, it was considered, but I'm waiting for a formal response.

[00:53:54]

[Stephen Lowney, Judge:] And the reason for all of these other motions?

[Royce Mars:] So your Honor, as you might be aware Judge Flint was in a criminal conspiracy with Roberts trying to force me to surrender custody rights...

[Interrupted by Nancy Roberts]

[Nancy Roberts, Opposing Lawyer:] Objection.
[Undistinguishable]

[Stephen Lowney, Judge:] I just need to hear what he has to say first. Go ahead.

[Royce Mars:] There were repetitive attempts to force me to surrender custody and abandon my son Max Mars.

Orders from June 29th ordered no contact with my son without any merit.

Because initial opposing DVROs, from September 2022, were never heard.

[Royce Mars:] Because Ms. Roberts, together with my attorney Dinneen at that time, conspired together with Flint and dismissed the trial on DVROs.

[Stephen Lowney, Judge:] Okay. So, let me just stop you here.
So you've heard the court today, evaluate some of your motions.

None of them have a legal basis. You have given the same reasons for every single one of your motions. You seem to be very focused on those reasons.

If I don't grant this order, what will stop you from continuing to file requests for orders?

>> [Comment:] RICO Predicate Act: Obstruction of justice, denial of access to court, coercion, racketeering

>> [Comment:] Lowney is coercing me to surrender custody rights and stop legal battle

[Royce Mars:] My word.

[Stephen Lowney, Judge:] Requests for orders. On the same exact basis that you did today.

[00:55:19]

[Royce Mars:] Your Honor, I trust you - because you are the New Hope for this Court. And for me personally, you are the hope that this court may be impartial, honest, and serve justice.

>> [Comment:] I was obviously too naive - justice is impossible in Santa Clara County court, same as in many other California courts, which are under control of California Mafia Cartel, and are driven by systemic corruption

[Stephen Lowney, Judge:] Okay. So, let's say that is true. This court, and me personally, follow the same laws that have been in this court since the beginning of this litigation.

We follow the same standards. Those standards are not going to change. The law is the law. And I am not confident at this time that you will only file meritorious requests for orders. In other words, you looked at the law, you understand what the law is, there are new facts that apply to the law, and you're requesting the order or filing the motion because you believe you have a better than 50 chance, 50 percent chance of winning the motion.

That's why you file motions. If you're just filing motions because you want to be heard again on your allegation, that is not a good basis to file a motion.

[Royce Mars:] Your Honor, I do believe this is a mistake of many self represented litigants, and I kindly ask you

for a chance to fix my mistake.

[Stephen Lowney, Judge:] So, just so you know, um, this court has heard motions from hundreds and hundreds and hundreds of self represented litigants.

And I can tell you that it's not that common, okay? The number of sheer motions that are then filed in this case is not common.

>> **[Comment:]** List of Vexatious Litigants in California is terrifyingly gigantic. Thousands of people are deprived of their rights and are denied access to court. Then robbed and unlawfully incarcerated. Children kidnapped and put into custody either of violent psychopath, or to foster parents. Thousands of kidnapped children left without parents who are incarcerated

[Royce Mars:] Thank you, Your Honor. I do think it's because I really worry about the life of my son Max Mars. And I would love to share this story with you if you would allow...

[INTERRUPTED BY LOWNEY]

[Stephen Lowney, Judge:] So, again, we're going to focus on the law, the requirements of the law.

And what you are supposed to consider before you are filing.

Alright, um, are your other requests for orders related to your vexatious litigant?

[Nancy Roberts, Opposing Lawyer:] No, they are not.

[Stephen Lowney, Judge:] Just one moment.

On the vexatious litigant request. Ms. Roberts, you filed this back in September. You were good enough to then recount what had happened since September. What I would like, um, is further briefing, not much, just what has happened since September, um, that would, in your mind, justify the Vexatious Litigant designation.

Then I'm just asking for a subsequent briefing. Mr. Mars, again, this was filed in September. And so I want

the same thing from you. Since September, I want your reasons for why the court should not declare you a vexatious litigant. And I want that in writing.

I don't want to put too much pressure on the parties. Can the court have that by February 16th?

>> [Comment:] Two weeks until Lowney will declare me Vex Lit and deny access to court

[00:59:12]

[Nancy Roberts, Opposing Lawyer:] You would like that filed?

[Stephen Lowney, Judge:] I would like it filed.

[Royce Mars:] May I ask for March 1st? To get more time.

[Stephen Lowney, Judge:] Give me the reason.

[Royce Mars:] Just to better prepare the brief, Because I will be busy next two weeks with the job related matters and I would prefer to get time to prepare brief better.

[Stephen Lowney, Judge:] We were speaking on February 23rd.

[Royce Mars:] Thank you Your Honor

[00:59:48]

[Stephen Lowney, Judge:] So I'm looking for briefings by February 23rd, and then I am going to make the decision which I will put in writing by March 8th.

[Royce Mars:] Your Honor, should this briefing be filed with a declaration like MC 025 or just the rule?

[Stephen Lowney, Judge:] Yeah, you can do it that way. Just as long as I can identify it in the queue amongst all the others.

And I will be able to. You can file it any way in which you can clearly identify the rule. You can put that in "further for the briefing on vexatious litigant".

Give me just one moment.

Alright, so now I'm looking at your request for a court order. And it looks like we would be on your label number two. Is that the duty of unsurrendered legal documents?

[01:02:13]

[Nancy Roberts, Opposing Lawyer:] Yes. That was a court order made back in July of last year. I have sent Mr. Mars several emails that he was court ordered to bring those documents to my office to be held. Ms. Mars could come and look at the documents in my office that they were giving out in front of me. Mr. Mars refuses to give up anything.

[01:02:35]

So, Mr. Mars, as I said before, he has absolutely everything. His vaccination record, his green card, his passport.

And, he's in violation of the court order.

So, I'm asking if you will not move, to court sign to re-issue those.

>> **[Comment:]** Kidnappers are extorting documents of my abducted son, and are threatening to reissue new passport to abduct my son Max Mars outside of the United States to Ukraine - where my son may die any moment due to ongoing war, and where kidnappers reside

Um, that's all I can think of, because Mr. Mars just doesn't obey court orders.

[Stephen Lowney, Judge:] Mr. Mars, can you respond?

[Royce Mars:] Yes. So, this matter cannot be heard until we will hear opposing DVROs in June.

[01:03:11]

[Stephen Lowney, Judge:] Why is that?

[Royce Mars:] The reason is that my son was abducted by a respondent. I am a primary parent. I've been taking care of my son. I provided a green card to my son. On August 25, my son received a green card and respondent promised me to "bury our son in Ukrainian soil, so you will never see him again".

[01:03:35]

[Stephen Lowney, Judge:] So, what is that? We're talking about documents.

[Royce Mars:] Yes, Your Honor.

[Stephen Lowney, Judge:] And you've been ordered to turn them over.

[Royce Mars:] Yes, Your Honor.

[Stephen Lowney, Judge:] So you must turn them over.

[Royce Mars:] Those orders were done by disqualified child trafficker Judge Flint.

[Stephen Lowney, Judge:] Yes, and they're valid.

Yes. We've just gone over all of it.

[Royce Mars:] Those orders were made against the factual and legal basis of the case.

[Stephen Lowney, Judge:] The orders stand.

[Royce Mars:] I understand, Your Honour, but I kindly request to stand at this order until opposing DVROs will be heard.

[Stephen Lowney, Judge:] Denied. You must comply with the orders.

[Royce Mars:] Your Honor, my son will be abducted to Ukraine and will never return. There is a war. Max can die. May I explain?

>> [Comment:] I was explicit that international abduction endangers life of my son - and extortion of passport of my son is act of child trafficking that endangers life of my son

[Stephen Lowney, Judge:] I want you to be, I want you to listen to the court.

We have just gone over a vexatious litigant analysis. I've asked for further briefing. And I've asked to see all of the conduct in this case regarding filed motions. What is also really relevant to that designation and to the court in general. is when you are ordered to do something by the court, that you comply, and that goes with both parties, and you not complying. It's not good.

[Royce Mars:] Your Honor, I would love to comply, but first, I need this matter to be heard.

[Stephen Lowney, Judge:] You don't understand. So you do not set conditions on when the court orders are to be complied with. You just comply.

[Royce Mars:] Your Honor, this order endangers life of my son, and the court refuses to hear this matter, what should I do?

[01:05:23]

[Stephen Lowney, Judge:] You should have appealed the order. We've gone over this. You disagree with it, the order was heard, you disagree with it, it was valid, and the law provides a remedy, and that remedy is appeal. You did not appeal, the order is valid, you must comply.

[Royce Mars:] Your Honor, signature of disqualified Judge Towery, who also was removed from court like Flint, costed my mom her life, terminal condition, because respondent with Signature of bribed Judge Towery kicked 95 years old senior woman with disabilities from home and caused death..

[INTERRUPTED BY LOWNEY AGAIN]

[01:06:04]

[Stephen Lowney, Judge:] So, Mr. Mars, you have to comply.

[Royce Mars:] Your Honor, could we hear this matter?

[Stephen Lowney, Judge:] I'm hearing it. I'm hearing it right now.

[Royce Mars:] Evidence. With evidence, Your Honor. With evidence that confirms that the respondent doesn't have any bond with the United States and abducts my son to Ukraine.

[INTERRUPTED BY LOWNEY AGAIN]

[Stephen Lowney, Judge:] No, no, no. You're asking for the hearing of the previous matter. No, they're not.

[01:06:28]

[Royce Mars:] So the only way is appeal, right?

[Stephen Lowney, Judge:] The only way for you to have that order reversed is for you to appeal, which you did not appeal, you did not appeal. You apparently decided you weren't going to comply. I know that you have reasons, but your reasons are irrelevant. The only thing that we are here today is to talk about the fact that you are not going to comply.

[01:07:00]

[Royce Mars:] Do I have any choice?

[Stephen Lowney, Judge:] You do not have any choice, that's what I've been trying to say. You don't have a choice.

The court has a lot of choices. I should tell you that. The court has a lot of choices on how it's going to enforce its orders. I'm trying to reason with you, and I'm trying to get you to understand that it's in your best interest, in a lot of different ways, to comply with these orders.

[Royce Mars:] I understand, Your Honor.

[Stephen Lowney, Judge:] So, here's what I want to hear.

[Royce Mars:] What should I do if my son will die, as a victim of the war in Ukraine?

[01:07:39]

[Stephen Lowney, Judge:] I know you want the order changed. I know you want me to change it, I'm not going to, but you are going to comply.

[01:07:55] And just to be clear, because I want the record to be clear, the request was for court order, Mr. Mars, to deliver to the court all legal documents regarding the minor child.

>> [Comment:] Fucked child trafficker Lowney is coercing me to surrender custody and give up passport of my son - so my son will be abducted outside of the United States to Ukraine, in times of war, by criminals who detain my son hostage without right for a phone call and promised me to bury my son in Ukrainian soil.
How healthy, caring father could do that shit to his son?

[Nancy Roberts, Opposing Lawyer:] Yes, to follow the court order from July trial date, there is a

[Stephen Lowney, Judge:] And you are ordered to comply. To the letter, every part of that order.

[01:08:24]

[Royce Mars:] Your Honor, what exactly is requested? And who should receive the documents of my son?

[Nancy Roberts, Opposing Lawyer:] The court order, Your Honor, is to deliver them to my office. They are to be held in trust by my office.

[Stephen Lowney, Judge:] Do you have the order?

[Royce Mars:] Your Honor, I don't have it, and I would raise to attention to the court that Nancy Roberts is not a trustworthy person, was requested to be disqualified, and I don't trust her life or my son.

[Stephen Lowney, Judge:] I understand. But you're saying you do not have the court order?

[01:09:00]

[Royce Mars:] I do not have it, but I can probably obtain it.

[SOME JIBBERISH. NANCY AND LOWNEY ARE TALKING AT THE SAME TIME]

[Nancy Roberts, Opposing Lawyer:] I believe it is July 29th.

[Royce Mars:] If it is June 29th then I have it, and it's in evidence of motion to reconsider.

[Stephen Lowney, Judge:] I'm gonna print it out for you.

[Royce Mars:] Thank you. Honor.

[01:09:25]

[Stephen Lowney, Judge:] Did you say July 29th?

[Royce Mars:] June 29th. This order was made by Judge Flint who was suspected in bribery, committed child trafficking and refused to review evidence.

[Stephen Lowney, Judge:] So you're gonna keep saying that even though the court said you don't?

>> [Comment:] Bribed piece of shit and child trafficker Lowney is prohibiting me to say truth about Flint being bribed and disqualified from the case

[01:10:00]

[Royce Mars:] Of course, I won't

[01:10:12]

[Nancy Roberts, Opposing Lawyer:] It was June 29th, your Honor, I apologize.

[01:10:17] The trial was on June 29th. The written orders were filed on July 31st.

[01:11:00]

[Stephen Lowney, Judge:] The order at the hearing was on, filed on July 31st?

[Nancy Roberts, Opposing Lawyer:] It should say partial, partial, orders at partial trial, uh, was July 31st. Okay.

[Stephen Lowney, Judge:] Deputy, can you hand a copy of this order to Mr. Mars, please?

[01:12:09]

[Nancy Roberts, Opposing Lawyer:] Your Honor, can we have a date by which Mr. Mars will be responsible?

[Stephen Lowney, Judge:] Yes, so today is the 7th. Mr. Mars, I'm going to ask you to comply with this order by February 15th.

[01:12:47]

[Royce Mars:] May I ask for a stay of this order until final trial?

[Stephen Lowney, Judge:] Denied

>> [Comment:] Fucked crook Stephen Lowney is extorting passport and all documents of my son to commit international abduction - while blocking divorce case from resolution to continue unlimited and uncontrollable wages garnishment through DCSS. Denial of final trial means that garnishment is not stopped and fucked crooks are using DCSS for unstoppable theft, while my son is abducted to Ukraine

[01:13:04]

[Nancy Roberts, Opposing Lawyer:] Your Honor, the next request has to do with the same orders that were, um, filed on July 31st. The court ordered that Ms. Mars was to be awarded the WV Tiguan without offset. Um, and that Mr. Mars was to pass the title to her. After the court made that order, Mr. Mars then volunteered that there was a loan on the vehicle that he had in his name.

[01:13:34] I spoke to the lenders. They told me that because the loan was in his name, he could not pass the title to Ms. Mars. So I spoke to Mr. Mars and suggested that he provide me the latest loan statement. That Ms. Mars paid off the loan, he would receive the title, and then he'd transfer title. And he's demanding the full value price of the car that you paid for.

[01:14:00] Um, not the quarter. Um, and so what I'm asking for the quarter is that he provide an office with the latest lender statement. That Ms. Mars be allowed to pay off the loan, and that he then transfer title to Ms. Mars. And if he does not do so, that the court clerk sign the title as elizor.

[Royce Mars:] Objection, Your Honor.

So your honor, I offered opposing counsel two options to pay either balance on date of separation as was ordered by judge Flint, or full price.

It was in the evidence for the final trial that was dismissed by you.

And I think I provided both statements. And all the documents to make sure that, yes, unfortunately, this car was loaned, advance from the revenue end to transfer title item.

[01:15:03]

[Stephen Lowney, Judge:] Alright, Mr. Mars, the order was for you to transfer the title. That has not occurred. A solution has been proposed that will, that does not hurt you at all. Um, and in fact requires, uh, respondent to pay down the rest of the car. And so I do not see why you're standing in the way of that.

[01:15:26]

[Royce Mars:] Your Honor, I don't understand why Ms. Roberts is refusing to pay for file transfer.

[01:15:36]

[Nancy Roberts, Opposing Lawyer:] Your Honor, the only statement you provided me was for the purchase price of the car, which is not the point of order.

[Royce Mars:] Objection.

[INTERRUPTED BY NANCY ROBERTS]

[Nancy Roberts, Opposing Lawyer:] Ms. Mars demanded the current loan balance, and he will not provide me with that statement.

[Royce Mars:] Objection. So, um, excuse me, but I provided the current statement on loan, on the date of separation. And it was provided right away with all property documents. I just admit, that Ms. Roberts is refusing to cooperate..

[INTERRUPTED BY LOWNEY]

[Stephen Lowney, Judge:] So, so what you need to do is you need to provide the current loan balance as of today.

[Royce Mars:] Okay, I'll do it.

[Stephen Lowney, Judge:] And then, you, she is going to pay off that balance. And once it's paid off, and you then have the title in your hand You must provide the title to her.

>> [Comment:] Predicate Act: Coercion, extortion, racketeering.

>> [Comment:] Child traffickers kidnapped my son, are detaining my son Max Mars hostage without right for a phone call, and are coercing me to surrender my property. The same extortion as with the passport and all documents. Why fucked crooks do not settle on something reasonable and release my son from detention?

[Stephen Lowney, Judge:] You must sign off the notice of release of liability and transfer of ownership.

[Royce Mars:] Absolutely. Your Honor, could you please include an order that respondent transfers me amount in statement so I pay off my balance?

[Stephen Lowney, Judge:] No.

[Royce Mars:] Your Honor, I'm not sure if she can do this technically. That's why I'm asking for her to transfer money to me. So I will pay off. It will be much faster than she does.

[01:17:00]

[Stephen Lowney, Judge:] Ms. Roberts?

[Nancy Roberts, Opposing Lawyer:] I don't believe that Ms. Mars will do that... [INDISTINCTIVE]

>> [Comment:] Fucked crooks who detain my son Max Mars hostage, are wasting my time on some bullshit related to car which they stole from me - while denying me to dismiss DVRO and release my son Max Mars from detention

[01:17:07]

[Stephen Lowney, Judge:] If it becomes a problem, we can revisit it. So those are the orders.

[Royce Mars:] Thank you, your honor.

[Nancy Roberts, Opposing Lawyer:] If Mr. Mars does not sign off on the title - he gets contempt... [INDISTINCTIVE]

[01:17:28]

[Royce Mars:] Objection, Your Honor. That's why I'm asking for a respondent to transfer money to me. Because Ms. Roberts will file another vexatious litigant or contempt without reasons and without merits. I have a task to transfer money to me. I will pay my balance and transfer title.

[01:17:46]

[Stephen Lowney, Judge:] So, Mr. Mars, once title is given to you by whatever bank is holding the loan, you must transfer title forthwith, which means immediately. Immediately. Yes. There's not going to be any

[Royce Mars:] No, there are no reasons for delaying. What I'm asking for is just the word.

[Stephen Lowney, Judge:] It will be a violation of the court order if you do not transfer those, the title, once you receive it, immediately.

[01:18:21]

And I'm going to say within 24 hours of you having it in your hand. You must, you must transfer the title.

>> **[Comment:]** What is the reason to transfer the title of my car to the murderer of my mom and the kidnapper of my son? And why bibed child trafficker coercing me to surrender ownership of my car, which was stolen by criminals, who detain my son hostage and threatened to bury my son in Ukrainian soil, so I will never see my son again?

[Royce Mars:] Did you see evidence with the statements?

[Stephen Lowney, Judge:] That's it, that's it, That's the end of the discussion on that.

>> **[Comment:]** Why fucked crook Lowney is refusing to review statement?

[Royce Mars:] Just to conclude, so the respondent transfers money to me, and I transfer the title?

[Stephen Lowney, Judge:] Yeah, right, right on. Is that correct? Yeah. Respondent, pay up the money. To the company. The company. We're not going to keep going around and around on these small things, okay?

>> [Comment:] For what fuck some fucked junkie Nancy Roberts who was requested to be disqualified 4 times, and was reported to Cal Bar two times for unethical conduct will contact my bank and get my car loan statements? That piece of shit is detaining my son without right for a phone call, extorting money and property from me. While my son Max Mars is in danger of being maimed by socially dangerous psychopath mother, who threatened to kill my son. What a fuck is going on?

[Royce Mars:] No, I just wanted to confirm that Ms. Roberts will send me a notification and call me when they will buy out, because they will file another contempt on me without any merits.

[01:19:19]

[Nancy Roberts, Opposing Lawyer:] You won't be notified, Mr. Mars. As soon as you give me the statement, it will be paid.

>> [Comment:] Some fucked crook Nancy Roberts on cocaine, shaking like fucked junkie, is extorting my property, and bribed piece of shit Lowney, fucked child trafficker, is enforcing that shit - while detaining my son hostage without right for a phone call

[Royce Mars:] Ms. Roberts, you give your word?

[Nancy Roberts, Opposing Lawyer:] That is my word, yes.

[01:20:00]

[Stephen Lowney, Judge:] Okay and what is the next request?

[Nancy Roberts, Opposing Lawyer:] The last request, because the last three issues have been resolved, The last issue is One of the court's prior orders was that the parties, um,

divide Mr. Mars 401(k) for the price of employment, and that they be concerned regarding the choice of an expert to draft the QDRO.

>> [Comment:] I provided QDRO from my 401k provider - but criminals Lowney and Roberts are coercing me to accept fraud from some criminal Barbara Strasen from their criminal organization, Santa Clara Mafia Cartel (BBMP), who will extort money from me, and will falsify records (and there were confirmations of financial fraud from other victims of Santa Clara Mafia Cartel)

[01:20:29] That didn't happen, so the court appointed Barbara Strasen to draft the QDRO. Um, she sent out her, um, contact for the parties to sign. Mr. Mars refused to pay the tuition that each party could have. So Ms. Mars paid it in order to get the sewing. And now Ms. Strasen thinks that to this date, and it's been a number of months, Mr. Mars is not signing off on their contract.

[Royce Mars:] Objection.

[01:21:00]

[Nancy Roberts, Opposing Lawyer:] Um, therefore, uh, what he's done is he's He's drafted his own QDRO and said, sign it, we don't need that, and we're not willing to do that, and there's already a court order to sign this, so it's, and we don't have the information for this, because he's not providing it to Barbra Strasen.

[Royce Mars:] Objection

[01:21:22] I had asked for an authorization to be signed by Mr. Mars, so that with less cost, I could obtain the records from his employer and the retirement plan. In order to get, get them to, you know,

[Royce Mars:] Objection

[Stephen Lowney, Judge:] stop. Okay. Alright. So, let's have a little chat about objections. So, objections in court are legal objections. So, there has to be a legal basis.

[01:21:49] They are not, and shouldn't be, tools to interrupt

the other side. I am not going to allow Ms. Roberts to interrupt you when you are speaking. And so, don't use objection, which is a legal term, to interrupt her, I'm going to give you a fair chance to say your respect. Also Um, I can't listen to her when we're doing that, and I can't listen to you if she would going to do that.

[01:22:15] That's going to stop. Now it's your time to respond.

[Royce Mars:] Your Honor, I provided QDRO, uh, prepared by my 401(k) provider to Ms. Roberts, and filed it to the court for final trial, but for some reasons, it was ignored. I do understand that Ms. Roberts is mentioning that, uh, Ms. Roberts with her client prepared some other QDRO, which I'm not aware of.

[01:22:46]

I do ask the judge, your honor, to decide which QDRO to use. I do believe that QDRO provided by the provider is much faster and straightforward. Again, it's done by professionals
[01:23:00] who own that account. But, in any matter, if your honor will decide that we need to use a QDRO prepared by opposing counsel, that is totally fine.

[01:23:13]

I would just kindly ask to forward that QDRO to me. I'm not aware of the final decision on that.

[01:23:31]

[Stephen Lowney, Judge:] May I pull out this uh, what is the

[01:23:36]

[Stephen Lowney, Judge:] The, the partial trial order

[Nancy Roberts, Opposing Lawyer:] Yes. And then there's the subsequent, um, The order states that the parties are unable to reach an agreement, they submit names or talk to representatives. And so it was only the case in the first option.

[Stephen Lowney, Judge:] Okay. Hold on, may I, hold on.

I gotta find the partial order.

[01:24:04] Click on this.

[01:24:23] Hold on, hold on, hold on.

[01:24:34] Here was the order. And it's going to be the order. The second set of orders will be the same as the first, based on the timing. Parties to be inferred regarding the name of an expert can select a name within five days. If no agreement, the party may submit directly to the Department of 79. You're saying there was no agreement?
Yes. So then it was just a quick order?

[01:25:17]

The chosen name they said would be in the email from the party. The Bud Party? Yes.
What's the name of the expert?

[Nancy Roberts, Opposing Lawyer:] Barbara Strasen

[01:26:26]

August 29th. 2023 for. I think that we're calling it recorded, but I think we are just using it.

[01:26:43]

Okay, I found it. This is an order dated August 29th, 2023.

Based on the pertinence part, the parties were ordered to retain an expert to complete the QDRO based on the timeline. The parties were ordered to meet and concur. To select an expert and select many of the quadros, July 31st, 2023. If there was no agreement, the parties were to submit three names directly to the Department of 79's email and the court would select the names.

The cost of the QDRO could be shared equally by the parties. Respondent's attorney notified the court and petitioner by email on August 9th, 2023, that the parties had not reached agreement on the names of the witnesses. Respondent counsel provided the court with three names from which to choose the

joint experts.

The petitioner objected, having already ruled that the court would select the mutual expert if there was no agreement between the parties, the court selects Barbara Strasen to prepare the process. Both parties are ordered to cooperate with Ms. Strasen. That was the order, and that is the order. Everybody is expected to comply with that order.

[Royce Mars:] Your Honor, could you please clarify what exactly is requested from me at this moment?

[Stephen Lowney, Judge:] It complies with the August 29th, 2023 order regarding the quietness. It's super clear.

[Royce Mars:] Which actions are required from me at the moment?

[Stephen Lowney, Judge:] You have to, Ms. Strasen is the project expert. The fee will be split between the two of you. You will pay half, and you will cooperate with me. We will provide the information required. to complete the QDRO, and then she will complete her analysis.

[Royce Mars:] Do I need to submit any documents?

[Stephen Lowney, Judge:] I just have the minutes reflect that I have printed out both the, both copies of the orders that were

[Royce Mars:] I would kindly ask you for a statement of decision for this hearing.

[Stephen Lowney, Judge:] Denied.

[Royce Mars:] It was filed.

[Stephen Lowney, Judge:] I saw it, I'm considering it, and I'm denying it.

>> **[Comment:]** Child trafficker, thief and racketeer Lowney is denying Statement of Decision, same as he denied Media Coverage, Recording of this hearing, and ADA Accomodations - denying any admissible evidence of extortion and racketeering

Within the court's ultimate discretion, I will not oppose or motion whether or not a statement of decision is appropriate. And I don't find it is, either.

[Nancy Roberts, Opposing Lawyer:] If I may clarify, Your Honor, several emails sent from Ms. Strasen's office with her contract and it notes documents that may be required to ensure a stringent response.

[Stephen Lowney, Judge:] So, to the extent that clarification would be needed, Mr. Mars will have that clarification and the orders will be complied with.

[UNDISTINGUISHABLE]

Thank you parties. I look forward to your briefing, and I'll have that decision

[Parties:] Thank you, your honor.